

		Costs “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in in the case.” (Cal. Rules of Court, rule 3.1700, subd. (a).) Plaintiffs contend GM has not provided sufficient evidence to support the claimed costs nor filed a Memorandum of Costs. While GM relies on <i>Kaufman v. Diskeeper Corp.</i> (2014) 229 Cal.App.4th 1, 8-9, to contend a memorandum of costs is not required, <i>Kaufman</i> involved costs under Civil Code section 1717, not Civil Code section 1794, subdivision (d). As GM has not filed a Memorandum of Costs, costs cannot be claimed in this motion. In summary, the Court reduces the requested Lodestar fees by \$5,914.50, the anticipated fees by \$1,550, and declines to apply a multiplier and award costs. The Court GRANTS Plaintiffs Martha L. Gutierrez and Jose A. Moreno’s Motion for Attorneys’ Fees, Costs, and Expenses in the reduced amount of \$17,136.50.
9	24-01393855 <i>Klinkert vs. Stone Ridge Academy LLC</i>	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record Motion to be Relieved as to Defendant Stone Ridge Academy, LLC The motion of attorney Josue C. Guerrero and law firm Greenacre Law, LLP to be relieved as counsel for defendant Stone Ridge Academy, LLC is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice of ruling which includes notice to Defendant that corporations must be represented by counsel.

		Motion to be Relieved as to Defendant Lois Smith The motion of attorney Josue C. Guerrero and law firm Greenacre Law, LLP to be relieved as counsel for defendant Lois Smith is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney to give notice.
10	20-01176795 <i>Loudon vs. Get It While You Can LLC</i>	Motion to Set Aside/Vacate Dismissal Plaintiff John C. Loudon’s Motion to Set Aside Dismissal is DENIED. “Although the language of the mandatory provision of section 473, subdivision (b), on its face, affords relief from unspecified dismissal caused by attorney neglect, our courts have, through judicial construction, prevented it from being used indiscriminately by plaintiffs’ attorneys as a perfect escape hatch to undo dismissals of civil cases. Courts have limited the application of the mandatory provision to those dismissals procedurally equivalent to defaults.” (Gotschall v. Daley (2002) 96 Cal.App.4th 479, 483 (cleaned up).) “A default judgment is entered when a defendant fails to appear, and, under section 473, relief is afforded where the failure to appear is the fault of counsel. Similarly, under our view of the statute, a dismissal may be entered where a plaintiff fails to appear in opposition to a dismissal motion, and relief is afforded where that failure to appear is the fault of counsel. The relief afforded to a dismissed plaintiff by our reading of the statute is therefore comparable to the relief afforded a defaulting defendant.” (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 619.) In Leader, the court ruled that failure to file an amended complaint after a demurrer has been sustained with leave to amend is not within the scope of Section 473, subdivision (b) because plaintiff had an opportunity to oppose the dismissal at the demurrer hearing. (Leader, supra, 89 Cal.App.4th 603, 621.) The dismissal of Defendant Byron Holley was not procedurally equivalent to a default judgment. It was Plaintiff who requested the dismissal. Thus, Plaintiff was not deprived of opposing the merits of the dismissal by his attorney’s mistake. Therefore, relief under may only be offered through the Court’s equitable power. Courts’ equitable power to set aside or modify judgments is limited. “[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court. Beyond this period there is a strong public policy in favor of the finality of judgments and only in exceptional circumstances should relief be granted.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 982.) One circumstance is where there is evidence of an extrinsic mistake, “a term broadly applied when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits.” (Id. at 981.) “Extrinsic mistake is found when [among other things] ... a mistake led a